

25NWCV03483 25NWCV03483

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AMERICAN FAST

FREIGHT, INC. v. QX LOGISTIX LLC

CASE NO.: 25NWCV03483

HEARING: 08/21/2026 @

9:30 AM

#14

TENTATIVE ORDER

I.

Plaintiff American Fast Freight, Inc.'s
motion for leave to amend is GRANTED.

II.

Plaintiff is ORDERED to file and serve
the proposed pleading attached to its moving papers within 5 days of this
Order.

Moving party to give notice.

Plaintiff American Fast Freight, Inc. (Plaintiff) moves for
leave to file a first amended complaint (FAC).

Background

On September 30, 2025, Plaintiff filed this action against Defendant QX Logistix LLC (Defendant) and Does 1 through 20. The form complaint alleges that Defendant became indebted to Plaintiff under an arrangement by which Plaintiff would provide transportation and freight related services and Defendant promised to pay Plaintiff. The form complaint asserts a single cause of action for common counts.

This is a continuation. On July 31, 2026, when this motion first came on for hearing, the Court continued this hearing and requested Plaintiff's counsel submit a declaration regarding the proposed name change.

On August 4, 2026, Plaintiff's counsel filed a supporting declaration.

Legal Standard

"The court may...in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473 subd. (a).)

California Rules of Court, rule 3.1324(a) provides: "A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

California Rules of Court rule 3.1324(b) requires a separate declaration accompany the motion. The separate declaration must include: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when

facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court of California (1959) 172 Cal.App.2d 527, 530.)

Discussion

Plaintiff moves for leave to file a FAC to correct Plaintiff's name. This motion is unopposed.

Plaintiff explains that “[d]uring litigation, Plaintiff inadvertently failed to accurately represent Plaintiff's name in the Complaint. Upon review of the supporting documents, I discussed the case with Plaintiff and concluded that the Plaintiff name must be adjusted.” (Hettena Decl., ¶ 4.) Plaintiff seeks to “adjust Plaintiff's name from American Fast Freight, Inc. to Odyssey Transport & Warehouse LLC.” (Hettena Decl., ¶ 5.)

Here, Plaintiff files the proposed FAC as required under California Rules of Court, rule 3.1324(a). (Hettena Decl., Exh. C.) At the first hearing, the Court requested clarity as to whether the proposed name change on Plaintiff represented a different plaintiff or the wrong name of the same plaintiff. (Order, 84/26.) Plaintiff's counsel subsequently “confirm[ed] that the proposed name change represents a different Plaintiff. The Plaintiff that is listed on the Complaint is the incorrect entity.” (Hettena Decl., ¶ 3.)

The Court notes that Plaintiff does not cite any authority permitting a change of a plaintiff. However, given that Plaintiff argues that commencing this case under the incorrect entity was a matter of inadvertence and that the proposed pleading only changes the name of plaintiff, the Court finds leave warranted. The Court further notes that this motion is unopposed.

Accordingly, Plaintiff's motion for leave to amend is GRANTED. Plaintiff is ORDERED to file and serve the proposed pleading attached to its moving papers within 5 days of this Order.